Fulbright U.S. Scholar Award

Project Statement

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Proposed Project: Institutionalization and Change in the Supreme Court of Namibia

Introduction

On March 21, 1990, the world witnessed the creation of a new constitutional court. The end of the three decade struggle for Namibian independence saw the creation of the Namibia Supreme Court. Unlike other similar institutions created around that time (for example, in Eastern Europe), the Court was a wholly novel institution; prior to independence, final appeals from the territory of South West Africa went not to any Namibian court but to the Appellate Division in Bloemfontein. The Namibian Supreme Court thus had to forge its own path, both with respect to its jurisprudence but also as a political institution operating in a newborn constitutional system. That it has done so is both a cause and an effect of Namibia's remarkable thirty-five year history as a stable, successful model of peaceful democratic transition and rule.

For more than three decades, my career has comprised research and teaching on political institutions, and in particular on courts and other judicial bodies. Much of my work has been U.S.-focused, a fact that has had both advantages and drawbacks. While the long history and relative organizational equilibrium of the U.S. system is a boon to understanding its operation and influence, it also makes research institutional development and change more difficult. My interest in the Namibian Supreme Court stems in part from the opportunity it provides to understand how an important, emergent institution changes and develops in its earliest days.

Driven by both scholarly and pedagogical interests, my application to the Fulbright U.S. Scholars Program at the University of Namibia (UNAM) contemplates an integrated program of teaching, outreach, and research, one that will substantially benefit the university, the greater Namibian population, and U.S.-Namibian relations. Consistent with the award description, I anticipate spending roughly equal time on teaching and research, with substantial additional effort geared towards outreach to the Namibian political and legal communities, and toward mentoring and public engagement; I describe each of these tracks in detail below.

Research

The research focus of my proposed Fulbright is the institutionalization of the Namibian Supreme Court. As a concept, institutionalization has its roots in early sociological theories of Weber, Parsons, and others; Eisenstadt defined it as "the organization of a societally prescribed system of differentiated behavior oriented to the solution of certain problems inherent in a major area of social life." In the context of political institutions, scholars such as Huntington and Polsby described institutionalization as "the process by which organizations and procedures acquire value and stability." More concretely, McGuire notes that a political body is

institutionalized "to the extent that it is an integrated part of the governmental system with an identity or mission seen as uniquely its own."

Institutionalization thus represents a key characteristic of the legitimate, effective political institutions necessary for democracy to thrive. As social constructions, political institutions do not gain recognition, authority, or legitimacy simply through words on paper. For a legislature, an agency, or a court to become institutionalized requires that it manifest and develop a set of characteristics to cement its place in the constitutional structure. Key among those are *autonomy* (sometimes styled as *differentiation*), *adaptability*, *coherence*, and *complexity*. Each of these four dimensions plays a key role in an institution assuming its place in the larger system of which it is a part, and each manifests itself in (qualitatively and quantitatively) measureable ways.

Central to the institutionalization of political bodies are the formal rules under which it exists and operates. In the case of the Namibian Supreme Court, for example, Article 144 of the Namibian Constitution specifies that "the general rules of public international law and international agreements binding upon Namibia under this Constitution shall form part of the law of Namibia." This clause mandates a particular form of constitutional monism, whereby the terms of international treaties binding on Namibia flow into domestic law automatically, without any action by the President or the parliament. It thus constitutes an independent source of constitutional power for the Supreme Court, one which in turn contributes to the Court's relative autonomy vis-à-vis the other branches of government. More broadly, constitutional rules, historical practices, and evolving norms all contribute to the speed, consistency, and durability of institutionalization of a particular organization. Moreover, political institutionalization occurs both across organizations but also among the citizenry; a crucial component of institutionalization is the popular legitimacy of and confidence the institution in question.

To trace the institutionalization of the Namibian Supreme Court, I will adopt a mixed-methods approach, one that combines quantitative and computational methods with in-depth historical research and personal interviews. Quantitatively, my research will draw on two major sources of data. The first is the entire corpus of existing decisions of the Namibian Supreme Court. I have secured an agreement with the nonprofit organization `Laws.Africa` to provide me with the full text and metadata of every decision of the Court (see the included letter of support from `Laws.Africa` founder Greg Kempe); these will be supplemented with lower court decisions, legislation, and law reform reports secured through the Namibia Legal Information Institute (NambLII). I have conducted computational linguistic analyses of large-scale databases of legal text for more than a decade; my analysis of the `Laws.Africa` and NambLII data will encompass both token-based (bag-of-words) techniques and contemporary large language models for operationalization and measurement of key concepts.

The second source of quantitative data are the series of ten surveys of the Namibian population conducted between 1999 and 2024 by the Afrobarometer project.[1] Each of those ten surveys have included consistently-worded items about President-Court relations, and about the Court's ability to make decisions that are binding on the other branches and the people. By analyzing cross-sectional and temporal patterns of responses to these questions, I will establish the extent and timing of institutionalization of the Court among members of the Namibian mass public.

[1] It is likely that the Afrobarometer will add an eleventh wave to their Namibian surveys during 2027 or 2028, in which case I will incorporate those data into the project as well.

Qualitatively, my research will combine textual insights from the development of the Court's jurisprudence with in-depth, structured and semi-structured interviews and archival research into historical documents relating to the Court's creation and development. The relative youth of the Namibian Supreme Court means that many of the individuals involved in its inception can be interviewed, including former and current justices as well as members of the Society of Advocates of Namibia (the country's official bar organization). Both the Court and the Society are located in Windhoek, and conduct their business in English, making interviews logistically straightforward. My own experience with conducting elite interviews is extensive, ranging from U.S. state legislators, federal Court of Appeals judges, U.S. Solicitors General, and managing partners of major U.S. law firms. My interviews will be augmented with historical research undertaken at the National Archives of Namibia, and at the Namibian Office of the Judiciary, both of which are also located in Windhoek. The eventual goal of this research will be the publication of a scholarly monograph with a major university or commercial press, one that will be of importance both within and outside of Namibia.

Teaching and Outreach

Over the course of my career, I have taught courses at all levels of the university, in subjects ranging from law, statistics, and computational linguistics to politics, public policy, and artificial intelligence. At UNAM, my goal is to work to bridge the schools and faculties, with a particular focus on the university's distinguished Department of Political Science. That department is home to more than 500 young leaders, including both graduate and undergraduate students, and many of its alumni have gone on to hold important positions in Namibian government and society, including Alfredo Tjiurimo Hengari, Peya Mushelenga, Job Amupanda, and Inna Hengari. Together with the Faculty of Law, the Department is at the core of Namibia's political future.

My own teaching philosophy strongly aligns with that of UNAM. At its core is the notion that instilling critical thinking, adaptability, and the capacity to learn and develop research skills over a lifetime is the central pedagogical task in the social and behavioral sciences. In a world of rapid social and technological change, the ideal preparation is for uncertainty: those best positioned to succeed, thrive, and shape the future are those with the intellectual agility to foresee change and dynamically adapt to it. This philosophy in turn drives my student-centered approach to learning, with a strong emphasis on individualized interaction, mentorship, and topical foci tailored to the specific needs of the student.

While at UNAM, I will collaborate with members of the Department of Political Science, as well as those in the Faculty of Law and the Department of Computing, Mathematical and Statistical Science, to offer courses that bridge statistical science, legal informatics, and public policy. Depending on existing needs and offerings, these will include undergraduate courses that emphasize social scientific theories of institutional change and resilience, research methods skills, and critical artificial intelligence (AI) literacy. At the graduate level, the emphasis will be on designing, conducting, and disseminating policy-relevant research on political and civil society institutions in Namibia, including the courts, the bureaucracy, the bar, and non-profit and international organizations, and on courses that impart critical statistical and computational skills.

In addition to teaching, I will undertake a sustained program of outreach to the political, legal, and educational communities in Windhoek. Some of this outreach will involve public-

facing lectures and roundtables hosted by UNAM. In addition, I am particularly enthusiastic to work with members of the Namibian bar, and to focus on the ways in which recent changes in information technology and legal analytics can streamline and democratize the provision of legal services. While the Namibian Constitution guarantees equal access to justice, substantial practical barriers to achieving that access persist. Working with the Society of Advocates and related groups (such as the Legal Assistance Centre, a non-profit public interest law firm dedicated to expanding access to justice), I will collaborate with the local legal community to advance reforms that improve access to legal services, particularly among the disadvantaged.

The timeline for my proposed research, teaching, and outreach activities as a Fulbright U.S. Scholar are outlined in Table 1.

Table 1: Proposed Research and Teaching Timeline

Fulbright Period	Research: Quantitative	Research: Qualitative	Teaching and Outreach
January-February 2028	Begin coding for Supreme Court case data; gather Afrobarometer data.	Begin scheduling Court interviews, subject to specific session terms and Court rolls.	Arrival; first semester courses begin; initiate outreach to legal services community.
March-April 2028	Continue coding Supreme Court data; begin coding NambLII data; undertake analysis of Afrobarometer data.	Begin Court interviews; schedule interviews with Supreme Court bar and legal experts.	Invited lectures commence; continue access to justice collaboration.
May-June 2028	Draft analysis of Court and NambLII data; write and present analysis of Afrobarometer data.	Continue Court and bar interviews; commence archival research.	First semester concludes; continue access to justice collaboration.
July-August 2028	Write and present analysis of Supreme Court and NambLII data; revise Afrobarometer analysis.	Conclude Court interviews; continue bar interviews and archival research.	Second semester begins; invited lectures continue; begin implementing access to justice reforms.
September-October 2028	Integrate quantitative components into draft manuscript.	Conclude bar interviews and archival research; begin integration of qualitative findings.	Invited lectures conclude; second semester concludes; departure.

Impact

The overarching goal of my Fulbright fellowship is to integrate the research, teaching, and outreach components into a program of work that will benefit myself, UNAM, the people of Namibia, and U.S.-Namibian relations more generally. The impact of this program will be felt on a number of different dimensions.

Research Impact: The proposed work on institutionalization offers important insights into the development of constitutional courts in the Global South. Namibia's constitution is the fifth-oldest in Africa, having lasted more than three times longer than the continental average. The Court's role in that remarkable persistence is of central importance to our understanding of what makes democracies last. The lessons we may learn from Namibia's success can inform the development of democratic constitutional systems around the world.

Teaching Impact: The growth of generative technologies means that integrating broad theoretical perspectives, qualitative and data analytic skills, and deep on-the-ground knowledge is the future of social-scientific work. Through collaborative, interdisciplinary lectures, courses, and projects that span the humanities, science, and law, I will offer UNAM students expertise from my own career's in research and pedagogy. Even more important, the insights those students bring to my classrooms will inform and enhance both my own work and the teaching I do there and elsewhere.

Institutional Impact: UNAM's position at the pinnacle of Namibian higher education makes it an innovator in research, instruction, and societal value. An important goal of my application is to build and strengthen connections across the University's various faculties, and in doing so to enhance pedagogical and research-aligned interdisciplinarity. My experience creating and building interdisciplinary programs and teams (e.g., Penn State's *Center for Social Data Analytics*) put me in an especially strong position to achieve this goal.

Personal Impact: Beyond research and teaching, my personal goal for my Fulbright Fellowship is to develop a set of relationships with individuals and organizations in Namibia that will allow me to deepen my understanding of Namibian institutions, politics, and culture, and thus to continue to teach, conduct research, and engage with the country and its people well into the future. More than a century ago, my distant relative and namesake Philipp Zorn authored the definitive treatise on German law in southern Africa, *Deutsche Kolonialgesetzgebung*. I view this Fulbright as the beginning of a career-long collaboration into the history, development, and future direction of governance in the region.

Impact on U.S.-Namibia Relations: Recent developments in U.S.-Namibian diplomacy have called into question America's dedication to an autonomous, prosperous future for the Namibian people, and to liberal democracy, civil society, and the rule of law more broadly in the world. In seeking this Fulbright Fellowship, I aim to play a small role in restoring–and building–trust and goodwill between our two countries. More specifically, by focusing on and highlighting the strength and resilience of Namibian institutions, and by engaging deeply with Namibian educational, governmental, and civil society organizations, I hope to manifest and reinforce the U.S.'s commitment to a propitious, flourishing Namibia.